

the FAC has already been submitted by Defendant as Exhibit 1 to the Carradero Declaration and is before the Court, addressing the Rule 3.1324(a) deficiency.

Counsel shall serve and file a supplemental declaration signed under penalty of perjury no later than April 17, 2026.

6. 9:00 AM CASE NUMBER: C24-00074
CASE NAME: NEXT LEVEL STRATEGIES, INC. VS. NEXTGEN LABORATORIES, A CALIFORNIA CORPORATION
***HEARING ON MOTION IN RE: AN ORDER TO SHOW CAUSE RE CONTEMPT AGAINST JOSEPH DEL SIGNORE RE SUBPOENA**
FILED BY: NEXT LEVEL STRATEGIES, INC.
TENTATIVE RULING:

Plaintiff and judgment creditor Next Level Strategies, Inc. (“Judgment Creditor”) filed a Motion for an Order to Show Cause re Contempt against Joseph del Signore re Subpoena on November 19, 2026 (the “Motion for OSC”). The Motion for OSC was initially set for hearing on April 6, 2026. Later the hearing date was reset by the Court on April 13, 2026.

Background

A money judgment was entered by the Court on May 14, 2024 (the “Judgment”) against defendant and judgment debtor NextGen Laboratories (the “Judgment Debtor”).

On August 12, 2024, the Court issued its Order to Appear for Examination directed to “Joseph Del Signore for NextGen Laboratories, a California corporation” (the “OEX”). The OEX was set for February 4, 2025.

The Judgment Creditor served a Civil Subpoena dated August 15, 2024 directed to “Joseph Del Signore President, NextGen Laboratories, a California corporation” with an address in Newport Beach, California (the “Subpoena”). See Declaration of Bryan D. Sampson and filed November 19, 2025, **Exhibit 3**; see also Affidavit filed December 12, 2025.

The Subpoena demands production of various documents, including various financial records (the “Records Sought”). *Id.* at **Exhibit 3**, Attachment 2.

The OEX and Subpoena were personally served on Joseph Del Signore. *Id.* at **Exhibit 4**.

On February 4, 2025 there was no appearance by Judgment Debtor for the OEX. The Court issued a bench warrant warning letter. See Minute Order dated February 4, 2025. The OEX was continued to March 4, 2025. *Id.*

There was no appearance at the continued OEX and the Court ordered a bench warrant be issued (to be prepared by counsel for Plaintiff with the related required paperwork). See Minute Order dated March 4, 2025.

Analysis

Disobedience of a subpoena duly served may be punished as a contempt of court. Code Civ. Proc. § 1991 (“Disobedience to a subpoena, or a refusal to be sworn, or to answer as a witness, or to subscribe an affidavit or deposition when required, may be punished as a contempt by the court issuing the subpoena.”); Code Civ. Proc. § 1209(a)(10) (“The following acts or omissions in respect to a court of justice, or proceedings therein, are contempts of the authority of the court: [¶]”).

[d]isobedience of a subpoena duly served"); see *Chapman v. Superior Court of Los Angeles County* (1968) 261 Cal.App.2d 194, 197-198;

The evidence proffered by Judgment Creditor demonstrates non-compliance with the duly served Subpoena. It appears just and appropriate for the Court to issue the requested Order to Show Cause.

Disposition

The Court finds and rules as follows:

1. The Motion for OSC is GRANTED.
2. The Court shall enter the proposed form of order lodged with the moving papers.

7. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer by defendant Allan Mendieta to plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. For the reasons set forth, the demurrer is **OVERRULED**.

Background

Plaintiffs Emil Mouton and Elizabeth Kelly allege they were injured in a motor vehicle accident. The driver of the other vehicle was defendant Allan Mendieta. Plaintiffs sued Mr. Mendieta for the negligence (motor vehicle) and general negligence. The Court granted them leave to amend their original complaint to allege additional facts and attempt to state a basis for seeking punitive damages.

Mr. Mendieta filed a demurrer to the first amended complaint ("FAC") for failure to state facts sufficient for recovery of punitive damages. Plaintiffs oppose the demurrer. Mr. Mendieta also filed a motion to strike the punitive damages allegations and prayer for relief which is set concurrently with the hearing on the demurrer and will be addressed in a separate ruling.

Procedural Objection – Late Filing

A responsive pleading was required to be filed within 30 days after service of the FAC, as extended for service by email, mail, or other means. (Code Civ. Proc. §§ 430.40(a), 1010.6 and 1013.) Nevertheless, the Court has discretion to consider a late-filed demurrer. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280; *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 749-750.) The Court exercises its discretion to rule on the merits of the demurrer, which it finds should be overruled for the reasons stated.

Procedural Issue – Declarations Addressing Evidence and Merits of the Claim for Punitive Damages

Defendant filed a declaration of counsel attaching Defendant's own written responses to discovery and excerpts of deposition transcripts taken in the case in support of the demurrer. (Leary Decl. Exhs. 2-4.) After the Court ordered the parties to complete a compliant meet and confer under Code of Civil Procedure section 430.41, counsel for each side filed supplemental declarations confirming the meet